

SOLVED PRACTICE WORKBOOK

Union Territories - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

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Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Union Territories - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Current inventory

Which statement is correct as on 18 August 2026?

A. Dadra and Nagar Haveli and Daman and Diu remain separate UTs. B. India has 9 Union Territories. C. India has 8 Union Territories. D. Delhi and Puducherry are the only UTs with legislatures.

Answer: C.

Explanation: [CURRENT] The eight include J&K and Ladakh separately and DNHDD as one merged UT.

OM2. Administrative default

The constitutional default for administration of a Union Territory is found in:

A. Article 356. B. Article 239. C. Article 243. D. Article 238.

Answer: B.

Explanation: [FACT] Article 239 places administration through a President-appointed Administrator, save as Parliament otherwise provides by law.

OM3. Administrator's character

Which description is constitutionally most accurate?

A. A UT Administrator is appointed by the Chief Minister. B. A UT Administrator is identical to a State Governor in legal source and role. C. A UT Administrator acts as an agent/channel of the President under Article 239. D. A UT Administrator is always the elected territorial head.

Answer: C.

Explanation: [FACT] The office is not a Part VI State headship; powers vary by the UT's special framework.

OM4. Parliament's State-List power

Parliament's power to legislate on a State-List matter for territory not included in a State is expressly stated in:

A. Article 239A. B. Article 240. C. Article 241. D. Article 246(4).

Answer: D.

Explanation: [FACT] This is the core reason Parliament's UT competence continues even where an Assembly exists.

OM5. Puducherry's constitutional hook

Parliament's power to create Puducherry's Legislature and Council of Ministers comes primarily from:

A. Article 239AA. B. Article 371. C. Article 239A. D. Article 240 alone.

Answer: C.

Explanation: [FACT] The Government of Union Territories Act, 1963 operationalises Article 239A.

OM6. Delhi's special article

The National Capital Territory and its Legislative Assembly are constitutionally anchored in:

A. Article 239B only. B. Article 239AA. C. Article 241. D. Article 239.

Answer: B.

Explanation: [FACT] The 69th Amendment inserted Article 239AA.

OM7. Delhi failure of machinery

Which provision allows suspension of the Article 239AA arrangement when Delhi cannot be administered in accordance with it?

A. Article 239AB. B. Article 239A(2). C. Article 356 directly and exclusively. D. Article 239B.

Answer: A.

Explanation: [FACT] Article 239AB is Delhi's specific failure-of-constitutional-machinery provision.

OM8. Ordinances in Puducherry

The Administrator's ordinance power during recess of Puducherry's Legislature is in:

A. Article 123. B. Article 240. C. Article 239B. D. Article 213.

Answer: C.

Explanation: [FACT] Prior presidential instructions are required.

OM9. Article 240 set

Which UT is expressly within Article 240's presidential-regulation text?

A. Andaman and Nicobar Islands. B. Chandigarh. C. Jammu and Kashmir. D. Delhi.

Answer: A.

Explanation: [FACT] A&N is expressly listed; Ladakh uses the route through section 58 of the 2019 Act.

OM10. Article 240 trap

Which UT is **not** covered by the Article 240 regulation route?

A. Ladakh. B. Chandigarh. C. Lakshadweep. D. Dadra and Nagar Haveli and Daman and Diu.

Answer: B.

Explanation: [FACT] Chandigarh is administered under Article 239 but is not in Article 240's specified set.

OM11. UT High Courts

Parliament's power to constitute a High Court for a UT or extend/exclude State High Court jurisdiction is addressed by:

A. Article 231 alone. B. Article 241. C. Article 262. D. Article 214 alone.

Answer: B.

Explanation: [FACT] Articles 214/231 support the wider High Court framework, but Article 241 is the UT-specific provision.

OM12. Separate High Court

Which Union Territory has a separate High Court of its own?

A. Puducherry. B. Chandigarh. C. Jammu and Kashmir. D. NCT Delhi.

Answer: D.

Explanation: [CURRENT] J&K and Ladakh share a common High Court; Delhi alone has a separate UT High Court.

OM13. Andaman jurisdiction

Andaman and Nicobar Islands fall under:

A. Madras High Court. B. Calcutta High Court. C. Bombay High Court. D. Kerala High Court.

Answer: B.

Explanation: [FACT] The circuit arrangement at Port Blair does not create a separate High Court.

OM14. DNHDD jurisdiction

Dadra and Nagar Haveli and Daman and Diu fall under:

A. Gujarat High Court. B. Delhi High Court. C. Madras High Court. D. Bombay High Court.

Answer: D.

Explanation: [FACT] The merged UT continues under Bombay High Court jurisdiction.

OM15. Lakshadweep jurisdiction

Lakshadweep falls under:

A. Kerala High Court. B. Karnataka High Court. C. Madras High Court. D. Calcutta High Court.

Answer: A.

Explanation: [FACT] Do not confuse Lakshadweep with Puducherry's Madras High Court link.

OM16. Puducherry jurisdiction

Puducherry falls under:

A. Calcutta High Court. B. Bombay High Court. C. Kerala High Court. D. Madras High Court.

Answer: D.

Explanation: [FACT] Puducherry has an Assembly but not its own High Court.

OM17. Common J&K-Ladakh court

The correct current institutional description is:

A. Ladakh has no High Court jurisdiction. B. Both are under Punjab and Haryana High Court. C. High Court of Jammu & Kashmir and Ladakh is common to both UTs. D. J&K and Ladakh each have a separate High Court.

Answer: C.

Explanation: [CURRENT] The official name expressly includes both territories.

OM18. Legislature set

Which set contains all current UTs with legislatures?

A. Delhi, Puducherry, Jammu and Kashmir. B. Delhi, Jammu and Kashmir, Ladakh. C. Delhi, Puducherry, Chandigarh. D. Puducherry, J&K, Andaman and Nicobar Islands.

Answer: A.

Explanation: [CURRENT] Ladakh, Chandigarh and A&N do not have territorial legislatures.

OM19. Delhi exclusions

Which group is excluded from Delhi Assembly's ordinary State-List competence?

A. land, education and electricity. B. agriculture, irrigation and markets. C. prisons, public health and local government. D. public order, police and land.

Answer: D.

Explanation: [FACT] These correspond to Entries 1, 2 and 18 plus related entries.

OM20. J&K exclusions

Under section 32 of the J&K Reorganisation Act, the Assembly is excluded from:

A. land and agriculture. B. public order and police. C. forests and water. D. education and local government.

Answer: B.

Explanation: [FACT] Unlike Delhi, land is not a blanket excluded field.

OM21. Puducherry competence

Which statement best states section 18 of the Government of Union Territories Act, 1963?

A. It may legislate only on the Concurrent List. B. Puducherry's Assembly may legislate on applicable State and Concurrent List matters, subject to the Act. C. It has no taxation competence. D. Parliament loses State-List competence after the Assembly is created.

Answer: B.

Explanation: [FACT] Parliament's power is expressly preserved by section 18(2).

OM22. Delhi parliamentary power

Article 239AA provides that:

A. Presidential assent permanently immunises a Delhi law from Parliament. B. Parliament cannot legislate on Delhi State-List matters. C. Parliament's NCT competence continues and its law can prevail under the constitutional scheme. D. the Delhi Assembly is sovereign in all non-reserved fields.

Answer: C.

Explanation: [FACT] Parliament can later add to, amend, vary or repeal even a reserved local law that received assent.

OM23. 2018 reference power

The 2018 Constitution Bench held that the phrase "any matter" in Article 239AA(4):

A. does not mean every matter; reference is an exceptional power. B. eliminates the need for ministerial advice. C. means every administrative decision. D. transfers all disputes directly to the Supreme Court.

Answer: A.

Explanation: [FACT] The LG must not mechanically refer every decision and should seek dialogue.

OM24. May 2023 services judgment

The Court held in May 2023 that:

A. Parliament has no competence over Delhi services. B. services are outside every UT's constitutional framework. C. Delhi controls police services. D. NCTD had legislative and executive power over Entry 41 services outside public order, police and land.

Answer: D.

Explanation: [FACT] This judicial position must now be read with the later 2023 Act.

OM25. NCCSA composition

The NCCSA consists of:

A. Chief Minister and two elected MLAs. B. Union Home Minister, LG and Chief Minister. C. LG, Chief Minister and Speaker. D. Chief Minister, Chief Secretary and Principal Home Secretary.

Answer: D.

Explanation: [FACT] The Chief Minister chairs; the two senior officials are members, with the Home Secretary as Member-Secretary.

OM26. NCCSA disagreement

Under section 45H after reconsideration:

A. the LG's decision is final where difference persists. B. the Chief Minister's view is automatically final. C. the recommendation lapses without decision. D. the Speaker decides.

Answer: A.

Explanation: [FACT] The LG must record reasons when returning a recommendation; persistent disagreement ends with the LG's decision.

OM27. Puducherry nomination

Who may nominate up to three persons to Puducherry's Legislative Assembly under section 3(3)?

A. Lieutenant Governor personally. B. Election Commission of India. C. Chief Minister. D. Central Government.

Answer: D.

Explanation: [FACT] The Supreme Court upheld this statutory allocation in *K. Lakshminarayanan*.

OM28. Nominated-member vote

The Supreme Court's Puducherry ruling held that nominated members:

A. cannot vote on the budget. B. may vote only on ordinary Bills. C. may vote on all questions, including budget and no-confidence. D. cannot vote in a no-confidence motion.

Answer: C.

Explanation: [FACT] The Court relied on the Act's treatment of all Assembly members and all questions.

OM29. Puducherry and Article 240

When Puducherry's Legislature is dissolved or its functioning suspended:

A. Parliament loses law-making power. B. the Administrator alone uses Article 213. C. the President may make Article 240 regulations during that period. D. Article 240 permanently ceases to apply.

Answer: C.

Explanation: [FACT] This is the second proviso to Article 240(1).

OM30. J&K current institution

Which proposition is accurate at the control date?

A. the Assembly controls police. B. J&K has an elected Assembly and Council of Ministers after the 2024 election. C. J&K has never held a UT Assembly election. D. J&K Statehood automatically returned with the election.

Answer: B.

Explanation: [CURRENT] The official 2026-27 Budget Speech independently evidences a functioning elected House and government.

OM31. Statehood control

Which statement is legally correct?

A. Statehood remains pending; the Court directed earliest restoration without a fixed date. B. Statehood returned when the 2024 result was declared. C. The Supreme Court itself converted J&K back into a State in 2023. D. J&K has a constitutional right to a specified restoration year.

Answer: A.

Explanation: [CURRENT] No enacted restoration or appointed-day legal change was located by 18 August 2026.

OM32. J&K 2024 business rules

The Second Amendment Rules, 2024 principally:

A. transferred police to the Assembly. B. prescribed LG-routing/approval channels for specified police, public order, AIS, ACB, legal and senior-posting matters. C. restored Statehood. D. abolished the J&K Assembly.

Answer: B.

Explanation: [FACT] The rules operationalise the wider discretion already present in section 53.

OM33. Dual-capacity trap

When a State Governor is appointed Administrator of an adjoining UT:

A. the Governor acts in the UT capacity independently of the State CoM. B. the UT becomes part of the State. C. Article 239 ceases to apply. D. the State CoM controls the UT.

Answer: A.

Explanation: [FACT] Article 239(2) expressly separates the capacities.

OM34. Strategic-rationale inference

Which is the best constitutional analysis?

A. Strategic importance removes fundamental rights. B. Every border territory must be a UT. C. Strategic importance may justify stronger Union coordination, but authority remains legally bounded and reviewable. D. A UT cannot have elected local bodies.

Answer: C.

Explanation: [ANALYSIS] Rationale explains differentiation; it does not create a rights-free zone.

OM35. Merger recall

Which event reduced the UT count from nine to eight?

A. Merger of DNH with Daman and Diu from 26 January 2020. B. Puducherry's renaming. C. J&K becoming a UT. D. Ladakh becoming a UT.

Answer: A.

Explanation: [FACT] J&K reorganisation first increased the count; the later merger reduced it.

OM36. Best evaluation

Which conclusion most accurately evaluates UTs with legislatures?

A. Parliament loses overriding competence. B. They are legally identical to States. C. They provide real but bounded self-government within a continuing Union-administered framework. D. Their Assemblies are merely advisory.

Answer: C.

Explanation: [ANALYSIS] The exact boundary differs among Delhi, Puducherry and J&K.

Remedial MCQs - strict continuation B -> C -> B -> A rotation

RM1. Eight-UT list

Which list contains no stale or duplicate territory?

A. A&N, Chandigarh, Delhi, J&K, Goa, Ladakh, Lakshadweep, Puducherry. B. A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh, Lakshadweep. C. A&N, Chandigarh, DNH, Daman and Diu, Delhi, J&K, Ladakh, Lakshadweep, Puducherry. D. A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh, Lakshadweep, Puducherry.

Answer: D.

Explanation: [CURRENT] Option C double-counts the merged UT and therefore gives nine.

RM2. Three Assembly bases

Which matching is correct?

A. All three derive solely from Article 246(4). B. Delhi-239AA; Puducherry-239A/1963 Act; J&K-2019 Act with section 13 application of 239A. C. Delhi-239A; Puducherry-239AA; J&K-Article 240. D. Delhi-Article 356; Puducherry-Article 371; J&K-239B.

Answer: B.

Explanation: [FACT] The legal-source distinction is central to the topic.

RM3. Regulation exclusion

Which UT should be removed from an Article 240 list?

A. Andaman and Nicobar Islands. B. Chandigarh. C. Lakshadweep. D. Dadra and Nagar Haveli and Daman and Diu.

Answer: B.

Explanation: [FACT] Chandigarh is the recurring close-option trap.

RM4. Delhi services current law

The safest present statement is:

A. the 2018 judgment alone gives Delhi all service control. B. NCCSA recommendations bind the LG without exception. C. the 2023 judgment transferred police officers to Delhi. D. the 2023 Act creates an NCCSA process and gives the LG final authority on persistent disagreement.

Answer: D.

Explanation: [CURRENT] The constitutional challenge does not by itself displace the enacted statute.

RM5. J&K and land

Which distinction is correct?

A. Neither excludes police. B. Delhi excludes land; J&K's section 32 does not blanket-exclude land. C. J&K excludes land but Delhi does not. D. Both exclude land.

Answer: B.

Explanation: [FACT] Delhi has three express exclusions; J&K has two.

RM6. Chief Minister appointment

Which matching is accurate?

A. Delhi-LG; Puducherry-LG; J&K-President. B. all three-LG. C. all three-President. D. Delhi-President; Puducherry-President; J&K-LG.

Answer: D.

Explanation: [FACT] The differing appointment routes reinforce non-uniformity.

RM7. Puducherry confidence vote

Under *K. Lakshminarayanan*, a nominated Puducherry member:

A. is excluded from quorum. B. cannot vote on supply. C. may vote on a no-confidence motion. D. loses membership on joining debate.

Answer: C.

Explanation: [FACT] The Court rejected special voting exclusions not written into section 12.

RM8. Judicial map

Which pair is incorrectly matched?

A. Chandigarh-Delhi High Court. B. Puducherry-Madras High Court. C. A&N-Calcutta High Court. D. Lakshadweep-Kerala High Court.

Answer: A.

Explanation: [FACT] Chandigarh is under Punjab and Haryana High Court.

RM9. Parliament after a UT Assembly

Creation of a UT legislature:

A. converts the UT into a State. B. creates exclusive State-List power identical to a State. C. does not extinguish Parliament's Article 246(4) competence. D. prevents future parliamentary law.

Answer: C.

Explanation: [FACT] This remains true for all three legislated UT models.

RM10. Delhi reference discipline

The 2018 judgment requires the LG to:

A. use reference exceptionally, with rationale and an effort at dialogue. B. exercise all executive power independently. C. refer every Cabinet decision. D. ignore presidential decisions.

Answer: A.

Explanation: [FACT] "Any matter" was not read as "every matter".

RM11. Evidence of current J&K Assembly

Which is the strongest named official evidence that elected government is functioning in 2026?

A. the 2019 Bill's statement of objects alone. B. an undated political speech. C. a generic news summary. D. the official J&K Budget 2026-27 speech by the Chief Minister/Finance Minister to the House.

Answer: D.

Explanation: [CURRENT] It directly records a sitting elected executive presenting finance to the Legislature.

RM12. Answer-writing discipline

The strongest structure for a Delhi-services answer is:

A. Article 239AA -> 2018 holding -> May 2023 services holding -> Act 19 of 2023/NCCSA -> pending-challenge qualification. B. Article list without legal sequence. C. judgement slogan -> conclusion. D. political allegation -> unsourced statistic.

Answer: A.

Explanation: [ANALYSIS] The sequence preserves claim, named evidence, analysis and current legal qualification.

PYQS AND ANSWER PRACTICE

Verified routed PYQs

PYQ 1 - UPSC GS-II 2018, Q11

Verified question: Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine. **15 marks | 250 words | Directive: Examine**

Demand decoding

- "Can settle" requires an extent judgement, not a summary of the case.
- "Political tussle" requires constitutional rule plus structural and behavioural limits.
- A current solved answer may use later developments to test whether the 2018 settlement proved complete.

Model solution

Thesis: [FACT] The July 2018 Constitution Bench settled the governing constitutional principle: within Delhi's legislative field, the LG is ordinarily bound by the elected CoM's aid and advice. [ANALYSIS] It could reduce legal ambiguity but could not eliminate conflict built into the national-capital design.

What the Court settled: [FACT] Article 239AA gives Delhi competence over State and Concurrent List matters except public order, police and land. The Court held executive power co-extensive with this field; the LG has no independent decision-making power; "any matter" is not "every matter"; and presidential reference must be exceptional, reasoned and preceded by dialogue. [ANALYSIS] This protects collective responsibility and prevents routine administrative veto.

Why the tussle could persist: [FACT] Parliament retains competence over every NCT subject and may override local law. The three reserved fields remain Union-controlled. Article 239AA(4) still contains a reference mechanism. [ANALYSIS] Divided authority therefore survives the judgment.

Later named evidence: [FACT] The May 2023 Constitution Bench located services in Entry 41 and gave NCTD executive control outside the reserved fields. Parliament then enacted the GNCTD Amendment Act, 2023, creating NCCSA and making the LG's decision final on a continuing disagreement. [ANALYSIS] The sequel proves that judicial principle alone did not settle the institutional contest.

Qualification: [LIMIT] Union control is not inherently unconstitutional in a national capital; intervention must remain textually grounded and non-obstructionist.

Verdict: The judgment settled the norm of representative primacy within Delhi's sphere, not the politics or all legal instruments of shared rule. Durable settlement requires statutory clarity, constitutional trust and accountable use of reserved powers.

Why this earns marks: It answers the extent question, uses Article 239AA and the operative 2018 propositions, tests them against the named 2023 sequel and ends with a qualified verdict.

PYQ 2 - UPSC GS-II 2025, Q4

Verified question from the locally held official paper: Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir. **10 marks | 150 words | Directive: Discuss and briefly describe**

Demand decoding

- "Nature" requires classification as a statutory UT legislature, not a State legislature.
- "Powers and functions" requires legislation, finance and accountability.
- The current answer must acknowledge the elected Assembly after 2024 without claiming Statehood.

Model solution

Thesis: [FACT] The 2019 Act created a statutory legislature for the UT of J&K and applied Article 239A's provisions through section 13. [ANALYSIS] It restores representative government but remains weaker than a State Assembly.

Legislative power: [FACT] Section 32 permits laws on applicable State and Concurrent List matters except public order and police; land is not blanket-excluded. Parliament nevertheless retains competence over every UT subject, and section 35 gives parliamentary law priority.

Functions: [FACT] The Assembly legislates, debates policy, grants supply, authorises appropriation, examines CAG reports, exercises privileges and holds the Chief Minister-led CoM collectively responsible. Bills pass through LG assent/reservation routes.

Current institutional evidence: [CURRENT] Elections were held in 2024; the official Budget 2026-27 was presented by the elected Chief Minister/Finance Minister to the House.

Qualification: [LIMIT] LG discretion over excluded fields, AIS/ACB and specified business-rule matters remains substantial; Statehood is pending.

Verdict: J&K has democratic self-government within a Union-weighted statutory framework, not restored State-level federal autonomy.

Why this earns marks: It classifies the institution, names sections and functions, supplies current evidence and directly qualifies the extent of autonomy.

PYQ coverage control

- [FACT] The audited local ledgers route these two direct Mains demands to Union Territories.
- [LIMIT] No additional direct Union-Territories Prelims PYQ was found in the audited 2018-2026 routing ledgers. No objective key or question has been invented to inflate coverage.

Original solved Mains practice

M1. Explain the constitutional rationale for Union Territories and distinguish direct administration from a UT with a legislature. (10 marks, 150 words)

Model solution

Thesis: [ANALYSIS] Union Territories are devices of differentiated territorial governance: the Constitution permits stronger Union supervision where capital, strategic, historical or scale considerations make the ordinary State model unsuitable.

Direct administration: [FACT] Article 239 places a UT under the President acting through an Administrator. Article 246(4) lets Parliament legislate even on State-List matters. For specified territories, Article 240 permits presidential regulations. [ANALYSIS] A&N, Lakshadweep and Ladakh illustrate Union-led administration shaped by strategic geography.

Legislature model: [FACT] Delhi has a constitutionally entrenched Assembly under Article 239AA; Puducherry has a statutory Assembly under Article 239A and the 1963 Act; J&K has a statutory Assembly under the 2019 Act. These bodies legislate, vote supply and hold Councils responsible. [ANALYSIS] Yet Parliament retains overriding competence and the LG/Administrator retains special powers.

Qualification: [LIMIT] UT status does not eliminate local bodies, rights or judicial review under Article 241.

Verdict: The distinction is between Union administration with local representation and bounded territorial self-government, not between government and no government.

Why this earns marks: It explains rationale, names the governing Articles, compares the two categories and avoids treating every UT as identical.

M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union Territory administration. Explain. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 239 is the general administrative rule; Article 240 is a narrower presidential power to make regulations for specified territories.

Scope: Article 240 expressly covers A&N, Lakshadweep, DNHDD and Puducherry; section 58 of the J&K Reorganisation Act applies the route to Ladakh. [FACT] Chandigarh, Delhi and the J&K UT-with-legislature are not governed through this general regulation list.

Effect: [FACT] A regulation may amend or repeal an applicable parliamentary Act or other law and has the force of an Act of Parliament in the territory. [ANALYSIS] It is therefore direct primary territorial legislation, not an ordinary executive rule.

Puducherry condition: Once its Legislature functions, the President cannot use Article 240; the power revives during dissolution or suspension. Article 239B ordinances, conversely, cannot be made during that suspension.

Qualification: [LIMIT] Regulations remain subject to the Constitution and judicial review.

Verdict: Article 240 is a territory-specific legislative safety mechanism nested inside, but distinct from, Article 239 administration.

Why this earns marks: It separates source, territories, legal effect and Puducherry's switch between representative and direct law-making.

M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category "Union Territory with legislature" internally unequal? (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] All three legislatures supply representation and responsible government, but different constitutional sources, excluded fields and Administrator powers produce three unequal models.

Delhi: [FACT] Article 239AA constitutionally creates the NCT Assembly. It covers applicable State and Concurrent List matters except public order, police and land. Parliament retains all-subject competence and Article 239AA(4) supplies an LG-President reference route. [CURRENT] Services now operate under the 2023 NCCSA statute.

Puducherry: [FACT] Article 239A enables, and the 1963 Act creates, thirty elected plus up to three nominated members. Section 18 grants applicable State/Concurrent competence; sections 21, 44 and 50 preserve parliamentary supremacy, Administrator-President control and difference reference. [FACT] *K. Lakshminarayanan* confirms nominees' full voting role.

J&K: [FACT] The 2019 Act creates a statutory Assembly and applies Article 239A through section 13. Section 32 excludes public order and police, not blanket land. Sections 53 and the 2024 rules give the LG significant discretion over AIS/ACB and specified routed matters. [CURRENT] The Assembly functions after the 2024 election.

Common core: legislation, budget, scrutiny and collective responsibility. **Common limit:** Article 246(4) and parliamentary override.

Qualification: [LIMIT] Delhi's constitutional entrenchment does not make it a State; J&K's elected restoration does not itself restore Statehood.

Verdict: "UT with legislature" is a family of asymmetric compromises ranging from constitutional NCT government to Parliament-designed statutory self-government.

Why this earns marks: It compares legal source, competence, executive relation and current status rather than offering three disconnected descriptions.

M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments reconfigured its operational content." Critically examine. (15 marks, 250 words)

Model solution

Thesis: [FACT] The 2018 Constitution Bench made aid and advice the rule and LG reference the exception; [ANALYSIS] the 2023 judgment extended that logic to services, while the later statute shifted the operational balance toward an NCCSA-LG model.

2018 constitutional principle: Article 239AA creates a directly elected Assembly and CoM. The Court held executive power co-extensive with legislative competence, the LG without independent decision power and "any matter" not "every matter". [ANALYSIS] This protected collective responsibility and limited administrative obstruction.

May 2023 extension: [FACT] Entry 41 services was not among public order, police and land. The Court therefore gave NCTD legislative/executive services power and linked officer control to the triple chain of accountability.

Legislative reconfiguration: [FACT] Act 19 of 2023 created NCCSA with the Chief Minister and two senior officials, majority decision, recommendations to the LG and final LG authority upon persistent disagreement. [ANALYSIS] Services control became institutionally shared but Union-weighted.

Critical balance: Parliament's Article 239AA/246 power supports legislation for the capital; however, frequent displacement of the elected chain can blur answerability. Conversely, national-capital security and all-India service coordination are legitimate concerns.

Qualification: [LIMIT] The Act's constitutional challenge remains unresolved; pending litigation is not invalidation.

Verdict: 2018 remains the constitutional grammar of representative government, but current services administration must be stated through the 2023 statute until judicially altered.

Why this earns marks: It preserves chronological and doctrinal sequence, presents both legitimacy arguments and states the exact current-law limitation.

M5. Evaluate the democratic and constitutional implications of nominated members in the Puducherry Legislative Assembly. (15 marks, 250 words)

Model solution

Thesis: [FACT] Article 239A expressly permits a partly nominated legislature and section 3(3) of the 1963 Act allows the Central Government to nominate up to three members. [ANALYSIS] The arrangement is constitutional and statutory, but its influence over confidence and supply raises democratic-design concerns.

Constitutional case: Puducherry is a UT, not a State; Parliament may define the Assembly's composition. Nominees can supply expertise or representation without a separate election. [FACT] *K. Lakshminarayanan* found no legal requirement of Chief Ministerial concurrence.

Voting effect: The Court read section 12's "all questions" and "members present and voting" to include nominees in budget and no-confidence votes. [ANALYSIS] Since such votes determine government survival, Union nomination can affect the elected executive's stability.

Democratic concern: appointment without local electoral accountability may alter majority arithmetic and encourage partisan distrust. The absence of a consultation requirement intensifies this risk.

Counterpoint: [LIMIT] Judicial interpretation cannot add restrictions omitted by Parliament; nominated members are legally full members, not second-class participants.

Reform options: transparent eligibility and reasons; pre-notified timelines; conflict-of-interest disclosure; convention of broad consultation; parliamentary review if the representational purpose is no longer served.

Verdict: The design is legally valid but democratically sensitive; legitimacy depends on transparent, representational rather than tactical use of nomination.

Why this earns marks: It separates validity from desirability, names the Act and case, explains the confidence-vote mechanism and offers legally compatible safeguards.

M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the 2024 election. (15 marks, 250 words)

Model solution

Thesis: [CURRENT] The 2024 election restored an elected Assembly and CoM within J&K's UT framework; [ANALYSIS] this is substantial democratic restoration but incomplete federal restoration.

Nature: [FACT] Sections 13-14 of the 2019 Act apply Article 239A and create a statutory UT legislature. It is not a Part VI State legislature. Section 32 grants applicable State/Concurrent competence except public order and police; Parliament retains all-subject power under Article 246(4).

Functions: It makes laws, authorises taxation and expenditure, debates policy, examines audit material and holds the CoM collectively responsible. The official 2026-27 Budget presentation by the Chief Minister/Finance Minister to the House demonstrates functioning financial accountability.

Limits: [FACT] section 53 gives the LG discretion outside the Assembly field and in AIS/ACB matters; the 2024 business rules route specified policing, prosecution, legal-officer and senior-posting matters through the LG. Parliamentary law prevails under section 35.

Democratic significance: Elections restore voice, opposition, public debate and ministerial answerability after a long institutional gap. [ANALYSIS] Yet responsibility may still exceed control where officers or reserved subjects lie outside the elected chain.

Qualification: [LIMIT] *In Re Article 370* directed elections and earliest statehood restoration but fixed no statehood date; Statehood remains pending.

Verdict: The Assembly is meaningful self-government under Union supervision, not symbolic, but only Statehood can restore full constituent-unit parity.

Why this earns marks: It uses the current election and budget as evidence, distinguishes democracy from federal status and identifies the exact LG/Parliament limits.

M7. "Union Territory asymmetry is administratively useful but democratically costly." Critically examine with reference to Delhi, Puducherry, Jammu and Kashmir and UTs without legislatures. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] UT asymmetry lets India tailor government to national-capital, island, frontier and historical needs, but its democratic cost rises when electoral responsibility is separated from control over law, officers and finance.

Administrative utility: [FACT] Article 239 enables unified presidential administration; Article 240 supports direct law-making for specified small/strategic territories. A&N and Lakshadweep require island-wide coordination; Chandigarh serves a shared-capital function; Ladakh combines frontier and ecological constraints. Delhi's reserved public order, police and land fields protect national-capital interests.

Representative adaptation: Article 239A/239AA and the 2019 Act show that central control can coexist with elected government. Puducherry retains a broad local legislative field; J&K has a functioning Assembly; Delhi has constitutionally entrenched representation.

Democratic costs: Delhi's NCCSA can leave ministers electorally liable without final service control. Puducherry's centrally nominated members may influence supply and confidence. J&K's LG discretion and business routing narrow the elected chain. Non-legislature UTs rely on local bodies and advisory forums rather than territorial law-making.

Constitutional safeguards: Article 241 judicial review, legislative scrutiny, collective responsibility and reasoned-reference duties prevent unbounded administration.

Counterpoint: [LIMIT] uniform Statehood is not always feasible or desired; national security, scale and minority protection can justify difference.

Reform principle: define reserved fields narrowly; publish decision reasons; align officers with accountable ministers where possible; strengthen local consultation; periodically review whether direct administration remains proportionate.

Verdict: Asymmetry is defensible as calibrated governance, not as permanent democratic discount.

Why this earns marks: It covers four models, supplies named legal mechanisms, balances utility and cost and derives a proportional reform test.

M8. Design a reform framework to reduce Administrator-elected government conflict while preserving legitimate Union interests. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Reform should not erase UT asymmetry; it should align authority, procedure and public accountability so that reserved Union interests are protected without routine paralysis.

1. Competence clarity: publish consolidated subject maps for Delhi, Puducherry and J&K, identifying the law-maker, executive controller and assent route. Use Article 239AA entries and sections 18/32 as legal anchors.

2. Officer accountability: create transparent posting and performance protocols. For Delhi NCCSA and J&K AIS matters, record institutional reasons, timelines and dissent rather than relying on opaque files.

3. Difference resolution: operationalise the 2018 Delhi principle - dialogue first, reference exceptionally, written rationale always. Adapt comparable consultation norms in Puducherry and J&K without contradicting their statutes.

4. Legislative transparency: publish the status and reasons for reserved/returned Bills, subject to legitimate confidentiality; require periodic Assembly reporting.

5. Nomination safeguards: for Puducherry, use public eligibility criteria, conflict disclosure and a representational purpose statement, while respecting *K. Lakshminarayanan*.

6. Direct-UT participation: strengthen elected local bodies, advisory committees, indigenous/community consultation and accessible grievance review in island/frontier territories.

7. Periodic proportionality review: Parliament should review whether the scope of direct administration still matches scale, strategy and democratic demand. J&K Statehood must be addressed through law, not converted into an assumed date.

Qualification: [LIMIT] security-sensitive material and urgent action may require confidentiality and speed.

Verdict: The objective is not maximum local power, but congruence between who decides, who can implement and who is publicly answerable.

Why this earns marks: It provides a sequenced institution-specific framework, protects Union interests and applies claim -> named evidence -> mechanism -> qualification throughout.